

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kim Mosolf	Team: Team # 5	CCRB Case #: 200204502	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☒ Injury
Incident Date(s) Wednesday, 04/03/2002 11:20 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/3/2003	Precinct: 81
Date/Time CV Reported Mon, 07/08/2002 4:52 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/08/2002 4:52 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Felix Clark	5486	915461	PBBN AC
2. POM Joseph Brunetti	23559	918633	MED DIV

Officer(s)	Allegation	Investigator Recommendation
A . SGT Felix Clark	Abuse: Sgt. Felix Clark stopped § 87(2)(b)	A . Exonerated
B . SGT Felix Clark	Force: Sgt. Felix Clark pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Joseph Brunetti	Abuse: PO Joseph Brunetti drew his gun.	C . Exonerated
D . SGT Felix Clark	Off. Language: Sgt. Felix Clark made remarks to § 87(2)(b) based upon race.	D . Unsubstantiated
E . SGT Felix Clark	Abuse: Sgt. Felix Clark threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . POM Joseph Brunetti	Force: PO Joseph Brunetti used physical force against § 87(2)(b)	F . Exonerated

Synopsis

On April 3, 2002 at approximately 11:20 PM, § 87(2)(b) who was visiting from California and staying with his grandfather, § 87(2)(b) was returning to his grandfather's after seeing a movie. He saw an unmarked police car drive by with Sgt. Felix Clark and PO Joseph Brunetti, both in plainclothes, inside. § 87(2)(b) was frightened and claimed that he had no idea the men were police officers, while the officers claim that § 87(2)(b) made furtive movements towards his waistband and they turned their lights on and clearly identified themselves verbally. Allegation A deals with this original stop.

§ 87(2)(b) ran from the officers towards his grandfather's residence at § 87(2)(b) in Brooklyn. Both officers had their guns drawn and Sgt. Clark allegedly pointed his at § 87(2)(b) during the pursuit (Allegations B and C). He also allegedly yelled a racial slur at § 87(2)(b) and threatened him with force as he ran away (Allegations D and E). PO Brunetti eventually caught up to § 87(2)(b) at the back door of his grandfather's home and grabbed him (Allegation F). § 87(2)(b) cut his hand on a broken window. § 87(2)(b) came out and the situation was cleared up, as § 87(2)(b) had no weapon on him. A stop and frisk report was filed.

§ 87(2)(g) it is recommended that Allegations A,B,C, and F be exonerated. § 87(2)(g) it is recommended that Allegations D and E be unsubstantiated.

Summary of Complaint

Complainant: § 87(2)(b)

§ 87(2)(b) made this complaint on behalf of his grandson, § 87(2)(b) the victim, on July 8, 2002 (Enc. 4a-b). He gave no explanation as to the time lapse between the incident date and the report date. § 87(2)(g)

§ 87(2)(b) did not witness much of the incident, but reported what his grandson had told him.

§ 87(2)(b) was interviewed on October 1, 2002 at the CCRB by former Inv. Kristen Santos (Enc. 5a-e). He stated that, on April 3, 2002 at approximately 11:30 PM, he was at home at § 87(2)(b). § 87(2)(b) had gone to bed and was sleeping at the time. His grandson, § 87(2)(b) had gone to the movies in Manhattan with some friends earlier in the evening. § 87(2)(b) awoke to hear banging and yelling coming from the back of his house. § 87(2)(b) went to the front door, opened the door, and called for his grandson. § 87(2)(b) did not know who was outside at the time, but called for his grandson just in case it was a burglar or someone snooping in his yard. § 87(2)(b) did not realize what time it was and did not even know that his grandson was not home at the time.

§ 87(2)(b) heard his grandson yell back to him that he (the grandson) "didn't do nothing." § 87(2)(b) shut the front door and went to get his bathrobe since he "wasn't decent." § 87(2)(b) stated that when he came back, his grandson was coming towards him and his right hand was bleeding from the palm. His grandson came into the house and told him what happened—that two officers had pointed their guns at him when he didn't know they were the police and they threatened to "kill him if he didn't stay still."

At this point, two officers came up to the front door and § 87(2)(b) let them in. § 87(2)(b) spoke to a Sgt. Clark, #5486 according to his badge, who told § 87(2)(b) that they (the Sergeant

and his officer, later identified by his badge as PO Brunetti) had stopped his grandson on § 87(2)(b) because “he was making gestures like he had a gun.” § 87(2)(b) believed that his grandson had run away from the officers because they were not in uniform, but were wearing jeans and T-shirts.

§ 87(2)(b) reported that the officers had caught up with his grandson by the back door where they (the officers and his grandson) had broken two windows in the altercation. The sergeant also stated that they were seasoned officers and that they were allowed to point their weapons at someone that they felt was suspicious.

§ 87(2)(b) was also shown photographic arrays of both of the above officers (Enc. 5e-d). § 87(2)(b) stated that he did not recall what the officers looked like, but did recall that the sergeant was Black, and recalled the shield numbers because “at least my mind is still good.” § 87(2)(b) added that his eyesight was going, and that it was useless for him to look at pictures. § 87(2)(b) was unable to identify either officer from either array shown to him.

Results of Investigation

Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b)-old black male § 87(2)(b). At the time of the incident, § 87(2)(b) was visiting his grandfather, § 87(2)(b) who resides at § 87(2)(b) in Brooklyn. He now resides in California and was interviewed over the phone by former Inv. Kristen Santos on July 12, 2002 (Enc. 6a-d).

§ 87(2)(b) stated that, on April 3, 2002 at approximately 11:30 PM, he had gone into Manhattan via the subway to visit his cousin and had come home by subway. He stated that he came out of the subway and took his cell phone out of his pocket to return a call (a friend had called while he was at the movies in Manhattan, so he wanted to return the call). He called a friend in California and they spoke about the movie as § 87(2)(b) walked towards his grandfather’s home at § 87(2)(b).

§ 87(2)(b) stated that a dark colored “Chevy looking” car drove by him from the opposite direction and slowed down. The two males (one black, one white) that were inside the car kept looking at him. The car pulled by a little further, stopped and both men looked at § 87(2)(b) again. The car then began to back up towards § 87(2)(b).

§ 87(2)(b) told his friend that he would call him back and hung up. § 87(2)(b) was scared at this point because he had no idea who these two men were or what they wanted, so he ran towards his grandfather’s home, which was less than a block away. When prompted, § 87(2)(b) explained that he had not been to his grandfather’s home since he was about 10-12 years-old and did not know the neighborhood. He also explained that out in California’s bad neighborhoods, people – specifically white and Hispanic males, would drive by you and “check you out.” The individuals were usually gang members who would then jump out of their cars and “jump” you – beat the person up, take their money and possessions, and sometimes shoot the person. Therefore, § 87(2)(b) stated that he thought the men were going to “jump him” and ran.

§ 87(2)(b) ran towards his grandfather’s house. En route he heard one of the men yell, “Stop! Stop right now!” § 87(2)(b) looked over his shoulder to see that one of the men, the Black male later identified as Sgt. Clark, had a gun drawn and yelled, “Stop right now nigger, or I’ll shoot your ass.” § 87(2)(b) ran around the front of his grandfather’s house to the back. As he went to

grab the screen door, the White male from the car, later identified as PO Brunetti, went to grab him and both of them crashed through the bottom glassed part of the door onto the porch. He was on his stomach with PO Brunetti on top of him. § 87(2)(b) kept rolling back and forth yelling, "Get off of me!" PO Brunetti yelled back at § 87(2)(b) "Why are you running? What's wrong with you?" § 87(2)(b) realized his left hand was cut open and bleeding at this point.

PO Brunetti assisted § 87(2)(b) to his feet and stated, "We're the police. Why were you running?" § 87(2)(b) told the officer, "I didn't know you're the police. You ain't in no uniform. How was I supposed to know?" PO Brunetti then stated that they thought § 87(2)(b) had a gun and told § 87(2)(b) to come with him. § 87(2)(b) walked with the officer out to the front of the house where the car that followed him was parked. PO Brunetti pointed to the car. § 87(2)(b) looked at him and said, "What the hell is that? That's not a cop car." Sgt. Clark reached in the front seat of the car, took out a red light, and slapped it on top of the car, asking him "Happy?" The officers then pulled out their badges, which were on chains around their necks and explained that he should not have run the way he did. They again stated that they thought he had a gun. § 87(2)(b) stated, "What gun?" and pulled his pockets inside out. "All I have is this," showing his cell phone.

§ 87(2)(b) grandfather then came out of the house and asked, "What the hell is going on around here?" He stated that his grandfather, who filed the complaint, was also the one to get the officers' names and shield numbers. His grandfather took him to "some hospital around there" where he was given butterfly sutures to hold his hand together.

Subject Officer: PO Joseph Brunetti

PO Joseph Brunetti was interviewed by former Inv. Kristen Santos on January 17, 2003 at the CCRB (Enc. 7a-h). On April 3, 2002, PO Brunetti worked a 6:00 PM to 2:00 AM shift doing routine patrol in the street crime unit, targeting crimes in progress, with Sgt. Felix Clark. He was in plainclothes and assigned to an unmarked, navy blue vehicle.

At approximately 11:40 PM, PO Brunetti observed a Black male walking in their opposite direction on the corner of § 87(2)(b) in Brooklyn with a cell phone in his left hand. After this male noticed the officers, he "made a furtive movement" with his right hand and pulled his pants up, also looking in his waistband. When asked to describe this further, PO Brunetti stated that the male was on the cell phone and had something in his hand and was fumbling around with it, possibly in the waistband or pocket area. PO Brunetti stated that "I couldn't tell" anything more specific regarding the object with which the male fumbled. The Black male walked past the officers in the car, continually looking back at them after passing. PO Brunetti was unsure, but believed that the male was wearing a black jacket/coat. Sgt. Clark stopped the car, turned the red light on (which sat in the center of the dashboard), and turned the car around, facing oncoming traffic. The male ran and then ducked behind a van and PO Brunetti exited the vehicle with his gun drawn but not pointed directly at the individual, yelling, "Police, don't move!" He also had his shield out.

The male took off running and then turned onto McDonough Street. PO Brunetti observed him inside the gate of § 87(2)(b), running up the outside stairs. PO Brunetti displayed his shield and shouted "police" again, running after him up the stairs. The male ran back down and jumped over a small fence. Sgt. Clark was able to stop him a few houses away. Sgt. Clark exited the vehicle with his gun drawn and pointed and shouted, "Police, don't move," but again the male ran off. PO Brunetti could not recall if there was a loudspeaker in the car. PO Brunetti stated that the whole time this pursuit was happening, "he was holding onto his waist, he was holding something."

The male made a turn into the driveway of § 87(2)(b) and ran up the stairs on the side of the house, banging on a glass door and yelling. PO Brunetti ran after him into the driveway of § 87(2)(b), following him up the stairs. The male then made a quick right and began banging on the two windows. PO Brunetti went to grab the male from the front, but on his last attempt to bang on the glass, the male broke the window.

PO Brunetti and the male began struggling while they were standing. The officer was trying to hold on and subdue him, while the male attempted to push him off of him and off of the stairs. The two men fell to the floor and continued wrestling. PO Brunetti could not recall if he handcuffed the male at this point, but stated that he did recall that when they later went to the front of the house, the male was un-cuffed.

He did manage to frisk the male. He found no weapon, but recalled that he had a cell phone. PO Brunetti could not recall if there was anything else on his waistband that would have explained the “furtive movements.” The male, whom the officers identified as § 87(2)(b) was yelling, “Fuck you, you white motherfucker! Why are you stopping me, why are you doing this?” § 87(2)(b) had cut himself on the broken window of the residence, trying to gain entry, and PO Brunetti noted that he was bleeding. He asked § 87(2)(b) if he wanted an ambulance, but § 87(2)(b) told him no and continued cursing. PO Brunetti brought § 87(2)(b) to the front of the residence to see if there was a weapon that he might have tossed.

PO Brunetti escorted § 87(2)(b) to the front of the house where Sgt. Clark was speaking to the owner of this residence, § 87(2)(b) the grandfather of § 87(2)(b). The officers explained to § 87(2)(b) what had happened and wrote down on a sheet of paper the officers’ names and shield numbers and gave it to him. They asked the grandfather if he wanted the officers to get § 87(2)(b) an ambulance, but he told Sgt. Clark that his grandson did not need an ambulance. § 87(2)(b) was yelling at his grandson to shut up and go inside in the house. After § 87(2)(b) went inside of the house, the officers continued explaining to § 87(2)(b) what had happened. § 87(2)(b) returned outside and § 87(2)(b) asked him, § 87(2)(b) if you’re not doing something wrong and you don’t have anything on you, why are you running from the police?” The grandson replied, “I’m from California and in New York they do drive-bys and I thought that they were doing a drive-by.” He went on to state that he had his hand in his jacket intentionally to simulate that he had a weapon so that, if it was in fact a drive-by or a robbery, he might scare them off.

PO Brunetti never heard his partner state, “Stop right there, nigger, or I’ll shoot your ass.” He stated that he did hear his partner yelling, “Police, don’t move!” and was in aural range for a good deal of the incident. PO Brunetti was not sure, but thought that he remembered his partner going to the car at some point and pulling out the red light and saying something like, “Here’s your cop car.” PO Brunetti pointed out that the lights had been on the whole time that they were in pursuit of § 87(2)(b).

§ 87(2)(b) did directly ask PO Brunetti for his name and shield number, and both officers wrote this information down on a piece of paper and gave it to § 87(2)(b).

A stop and frisk report was then prepared in regards to this stop. When asked why this incident stood out in his mind, PO Brunetti stated that § 87(2)(b)’s yelling and cut made it memorable for him.

Subject Officer: Sgt. Felix Clark

Sgt. Felix Clark was interviewed at the CCRB on February 6, 2003 (Enc. 8a-e). On April 3, 2002, Sgt. Clark worked a 5:15 PM to 2:12 AM shift with PO Brunetti as part of an Anti-crime Patrol Unit. The officers were in plainclothes and assigned to an unmarked vehicle—a blue Chevrolet Lumina.

At approximately 11:20 PM on April 3, 2002, Sgt. Clark was driving the vehicle southbound on § 87(2)(b) in the confines of the 81st Precinct. As he approached § 87(2)(b), he spotted a Black male on a cell phone. The male looked at the officers in the car and Sgt. Clark slowed the vehicle down. The male continued looking at the officers and reached inside of his waist area, holding his waistband. Sgt. Clark stated that, based on his seven years as a police officer and four years working in Anti-crime, he believed that the male was holding his waistband and looking down “as if he had a firearm.” He then turned on the red light on the dashboard, as well as the back and front flashers on the car.

There was a van parked on § 87(2)(b) and the male ducked behind the van. Sgt. Clark turned the car around and switched on the sirens, now driving against traffic. The male peered out from behind the van, looked at the officers, and took off running. He got to the corner of § 87(2)(b) and Sgt. Clark pursued in the car with the lights and sirens on, still driving against traffic. He turned the car onto McDonough and told PO Brunetti to get out of the vehicle at the corner. PO Brunetti exited the car, but told Sgt. Clark, “Sergeant, we lost him.” Sgt. Clark told his partner that the male had to be inside of one of the yards.

PO Brunetti entered the yard of § 87(2)(b), at which point the male “jumped out” from the brick gate, brushing up against PO Brunetti. PO Brunetti moved out of the way and the male ran off down § 87(2)(b). PO Brunetti pursued on foot while Sgt. Clark continued to pursue in the car. He cut off the male in front of § 87(2)(b) and exited the car with his gun drawn, believing that the male had a firearm. He did not call the male a nigger or make any threats. With his shield in front of him, he stated, “Police, don’t move, get down.” The male replied, “Ok, ok,” and began to get down to the ground. Sgt. Clark began holstering his weapon and the male took off running again, inside the large driveway at § 87(2)(b) heading towards the back of the location.

PO Brunetti approached at this point and both officers were yelling, “Police, stop, don’t move!” The male continued running and climbed approximately six steps towards the back of the house. The male began banging and the officers heard glass shatter. Both officers went up the stairs after the male, again telling him, “Police, don’t move.” The male replied, “What are you guys doing chasing me? I didn’t know you guys were the police!” Sgt. Clark told him, “Yes, you did know we were the police. Once I turned on my lights and once you saw my shield when I got out of the car. You saw the other officer’s shield. We yelled police several times.” The male continued to argue, “You don’t understand, I’m from California. I thought you were doing a drive-by. This is my grandfather’s house.”

PO Brunetti climbed the stairs and grabbed the male. The male did not resist and PO Brunetti patted him down, finding no weapons.

The male started yelling for his grandfather. An older male, § 87(2)(b) came out of the residence and Sgt. Clark told him what happened. § 87(2)(b) turned to his grandson, § 87(2)(b) and told him, “Listen, this isn’t California. You could have got shot.” § 87(2)(b) told the officers that § 87(2)(b)’s mother had sent him to New York to be with his grandfather because he was having some problems in California.

§ 87(2)(b)'s hand was bleeding from breaking the glass and Sgt. Clark asked him if he wanted an ambulance. § 87(2)(b) cursed at him, "Fuck you." § 87(2)(b) told his grandson to watch his language and § 87(2)(b) protested that his grandfather was always taking others' side. § 87(2)(b) made it clear that he was not taking any sides and invited the officers inside. They went into the home and spoke with the grandmother, too. She asked if their lights had been on and Sgt. Clark showed her that the lights were still on in the car parked out front. § 87(2)(b) was standing right there and Sgt. Clark pointed out the lights to him.

Sgt. Clark then told her his name, also writing down his name, shield number, tax number, and his partner's full information on a piece of paper and giving it to § 87(2)(b). § 87(2)(b) did not ask for the information specifically, but Sgt. Clark told him that if there were any problems, his name was Sgt. Clark.

When asked why this incident stood out so much in his memory, Sgt. Clark stated, "I don't know. I don't have incidents like this every day."

Sgt. Clark's SBA representation pointed out that § 87(2)(b)'s race is Black, as is Sgt. Clark's.

Medical Records

§ 87(2)(a) PHL § 18(6)

Police Documents

The officers prepared a stop and frisk report noting that they had suspected § 87(2)(b) of criminal possession of a weapon and burglary. His demeanor is described as, "furtive, evasive, nervous," and it notes § 87(2)(b)'s comments as, "I didn't do anything." The report notes that force was used, specifically hands on the suspect while the suspect was on the ground. It also notes that § 87(2)(b) was frisked, but not searched, and that no weapons were found on him. (Enc. 12)

Officer CCRB History

Sgt. Felix Clark had a Discourtesy and Force allegation substantiated against him in 1997 with charges recommended. In 2000 he had another case with Abuse of Authority (stop and question, failure to provide name/shield) substantiated with charges recommended. (Enc. 2)

Conclusions and Recommendations

Established Facts

On April 3, 2002 at approximately 11:20 PM, Sgt. Felix Clark and PO Joseph Brunetti were driving on § 87(2)(b) in Brooklyn in an unmarked police car, assigned to an Anti-crime Patrol Unit. They saw § 87(2)(b) who also spotted the officers, and slowed the car down as they allegedly noticed him make furtive movements towards his waistband. § 87(2)(b) ran from the officers, who pursued him, with their guns drawn at different moments, to his grandfather's residence at § 87(2)(b) and chased him up the back stairs. PO Brunetti apprehended § 87(2)(b) and frisked him, finding no weapons. The grandfather, § 87(2)(b) came out of his house and spoke with the officers.

§ 87(2)(g)

§ 87(2)(g)

Officer Identification

§ 87(2)(b) provided Sgt. Clark's shield number and the identity of the officers was confirmed by the stop and frisk report. Both officers' memobooks and statements also confirmed their involvement. § 87(2)(g)

Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A) Abuse of Authority: Sgt. Felix Clark stopped § 87(2)(b)

§ 87(2)(g)

Both officers stated that they were driving on § 87(2)(b) when they noticed § 87(2)(b) on his cellular phone. They both stated that § 87(2)(b) looked at them repeatedly and made furtive movements towards his waistband. The officers stated that the male ducked behind the van and that they then turned the car around and turned the lights on. § 87(2)(g)

§ 87(2)(g) Both officers describe a similar movement or gesture made towards the waistband. PO Brunetti stated that § 87(2)(b) later explained to the officers that he had made this movement because he was frightened and wanted the officers to believe that he had a weapon on him. While both Sgt. Clark and § 87(2)(b) confirmed that § 87(2)(b) reported being frightened of the officers, Sgt. Clark did not mention the explanation cited by PO Brunetti. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation A be exonerated.

Allegation B) Force: Sgt. Felix Clark pointed his gun at § 87(2)(b)

Allegation C) Abuse of Authority: PO Joseph Brunetti drew his gun.

§ 87(2)(b) admitted to running from the two men he saw in the car. Both officers give totally consistent accounts of seeing § 87(2)(b) reach furtively towards his waistband and ducking behind a van. Both officers consistently stated that they turned on the lights in the car before § 87(2)(b) ducked behind the van and that they turned on the sirens shortly thereafter. They also consistently stated that they were yelling “Police, don’t move,” repeatedly at § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

OATH case *PD v. Gliner* from September of 2000 notes, “there are no regulations or guidelines concerning the drawing of a weapon. The policy of the Department is that an officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another’s personal safety.” (Enc. 1a-e) Both officers clearly stated that they believed § 87(2)(b) may have been carrying a weapon and his flight could only have raised this level of suspicion. They were both entering into an unknown situation and thus had a “reasonable fear for his own or another’s safety.”

Sgt. Clark did not clearly state that he pointed his gun, but he did admit to drawing it. PO Brunetti stated that his partner did point the gun briefly and § 87(2)(b) also noted that Sgt. Clark pointed the gun at him. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations B and C be exonerated.

Allegation D) Offensive Language: Sgt. Felix Clark made remarks to § 87(2)(b) based upon race.

Allegation E) Abuse of Authority: Sgt. Felix Clark threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that Allegations D and E be unsubstantiated.

Allegation F) Force: PO Joseph Brunetti used physical force against

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleges that PO Brunetti grabbed him and they fell into the glass, breaking it and causing him to cut his hand. PO Brunetti and Sgt. Clark both claim that § 87(2)(b) broke the glass on his own by pounding on it.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation F be exonerated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: